

Conclusion

Plaintiff is not absolutely entitled to “all the steps” and results of District investigation into the claim Plaintiff asserted in litigation. If all Plaintiff sought was a list of people known to have been present at any of the incidents, these interrogatories were too blunt of an instrument to accomplish that. Plaintiff could have asked what if anything did non-attorney employees of the District do consistent with Concussion protocols. By asking for “all the steps” taken to investigate the litigation, it does appear that Plaintiff was trying to save itself time and effort and piggy-back on the Defendant’s investigation. The three interrogatories at issue are overbroad to the extent they seek material that is potentially work product or attorney-client privileged. The Defendant’s argument to limit the scope of the response based on the sustained Demurrer was understandable but ultimately irrelevant.

Plaintiff is not entitled to take undue advantage of the Defendant’s attorney’s industry or efforts. And Defendant is not entitled to assert a blanket work product / attorney client privilege claim without a foundational showing to the Court. The FERPA issue appears to have been resolved as to all but one the students in question and does not need court intervention at this time.

Defendant is ordered to answer the interrogatories to the extent that it has information about “steps” taken which are not protected by work product / attorney client privilege. The Defendant is ordered to produce a privilege log describing responsive information that is not disclosed. The privilege log shall be in table form with eight columns from left to right titled: Item number, Date of item, Document type, Author(s), Recipient(s), Description of Item, Nature of claimed privilege (“AWP”, “QWP”, or “A/C”), and reason for the assertion of privilege.

The court does not feel that either party has misused the discovery process. Each acted to a degree on good faith, defensible arguments, and many of their disputes were resolved without bringing them to court. The District has acted with substantial justification and the court finds that awarding sanctions against the District would be unjust. The court wishes the parties’ meet and confer efforts could have gone further in negotiating the outcome that is being ordered today. The court declines to award sanctions against either party.

The Defendant is ordered to produce further non-work product and non-privileged information within 60 days of notice of entry of this order, along with a privilege log. If the Defendant is not willing to produce the privilege log to Plaintiff (if the nature of the assertion of the privilege would compromise the privilege) then the Defendant is ordered to seek an in chambers review with the court by noticed motion (or by submitting a stipulated request of the parties) that the court set a date for an in camera inspection of the log and of the responses. Plaintiff shall be entitled to notice of the date of the in camera hearing and of the results of any material ordered to be produced. Defendants shall provide a court reporter for the in camera and the resulting transcript shall be ordered confidential and sealed and not to be disclosed without further order of the court.

Although there is no prevailing party, Plaintiff is ordered to notice all parties and file entry of this order.

15. 9:01 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
*HEARING ON MOTION FOR DISCOVERY COMPEL ATTENDANCE AT DEPOSITIONS
FILED BY: JOHNSON, GARY
TENTATIVE RULING:

Discovery Referee is appointed.

On motion of a party, stipulation of the parties, or *sua sponte*, a court may appoint a discovery referee to manage and rule on the discovery aspects of a case. See CCP §639(a)(5), (b)–(d); Cal Rules of Ct 3.920–3.932, *Lu v Superior Court* (1997) 55 Cal.App.4th 1264 (trial court has authority to appoint discovery referee before discovery dispute arises to assist attorneys in creating efficient discovery plan).

The Court grants its motion, *sua sponte*, for the appointment of a Discovery Referee pursuant to Cal. Code of Civ. Proc. §§ 639(a)(5) and 640. The Referee shall hear all disputes relevant to the discovery in the action and report findings and make a recommendation thereon. Counsel shall prepare a written order with such findings and otherwise in compliance with all applicable law for the appointment of the referee, including Code Civ. Proc. § 639.

Five discovery motions have already been brought to the court and ruled upon.

On November 8, 2024 Plaintiff's motions to compel further responses to Form and Special Interrogatories, and Requests for Production were granted in part. Sanctions were awarded to Plaintiff.

On August 1, 2025, Plaintiff's Motion to have Requests for Admission, Set 2, and to Compel Responses to Plaintiff's Request for Production of Document was ruled upon and the court ordered sanctions.

On August 22, 2025, the court denied Plaintiff's Motion to Compel further Responses To Plaintiff's Request for Production of Document as moot because prior to the hearing the Defendant provided verified responses and substantially complied with its obligations. The Court imposed sanctions in the amount of \$350,

On December 18, 2025, Judge O'Connell ruled on Cross-Defendant's Motion to Compel Further Responses to Sunpoint Public Adjusters, Inc.'s Discovery Requests to Gary Johnson, Kevin Johnson, and Johnson and Johnson. The court imposed sanctions.

On January 30, 2025, the court heard Plaintiff's Motion to Compel further responses from Third Party Magido CPA to a Request for Documents attached to a deposition subpoena. (Currently under submission to the court.)

Three more discovery motions have been filed with the court and are set for hearing.

Defendant's Motion to Compel Sunpoint's Attendance at Deposition, (filed October 15, 2026).

Defendant's Motion to Compel Sunpoint's Further Responses to Request for

Documents (ESI), Kevin Johnson's Cell phone (filed October 15, 2026)

Cross Defendant's Motion to Quash Defendant and Cross-Complainants's Subpoena to Merlin Law Group, PA, filed December 20, 2025 and set for hearing March 6, 2026.

These three motions shall be dropped from calendar and referred to a discovery referee along with any future discovery motions in this case.

The Court finds, in its discretion, that such an appointment is necessary. The Court finds that in view of the history of numerous discovery motions, and in view of the existing disputes raised by the pending motions and complexity of those issues require discovery reference. Section 629(a)(5) of the Code of Civ. Proc. Section 639(a)(5) states, "When the court in any pending action determines that it is necessary for the court to appoint a referee to hear and determine any and all discovery motions and disputes relevant to discovery in the action and to report findings and make a recommendation thereon."

By no later than **February 20, 2026 at noon**, the Parties are ordered to meet and confer pursuant to Cal. Code of Civ. Proc. § 640(a) or (b) and shall submit a stipulation and proposed order listing the proposed discovery referee to the Court along with the referee's curriculum vitae and fee schedule by no later than February 27, 2026.

If the Parties are unable to agree to a particular discovery referee by February 27, 2026, the parties are to submit a joint statement to the court containing information about one proposed referee for each side. (For purposes of selecting a Discovery Referee, the plaintiff and Cross-Defendants are one side, and the Defendants and Cross-Complainants are the other side.) The joint statement shall list two candidates, and attach as exhibits containing candidate's fee schedules, describing any limitations on their availability to serve as a referee, previous pertinent experience, including past service as a discovery referee, and curriculum vitae. Exhibits must not to exceed 5 pages per candidate. **The parties are not to identify which party is proposing which candidate for referee.**

The joint statement proposing candidates to serve as discovery referee should be filed with the court and separately emailed to dept32@contracosta.courts.ca.gov by March 6, 2026 at noon.

The Court will select one of the proposed referees by unreported minute order and notify the parties. The Discovery Referee will be requested to sign the Judicial Council ADR-110 form. Upon receipt of the executed form by the Discovery Referee, the Court will sign the ADR-110 form.

No party has established an economic inability to pay a *pro rata* share of the referee's fee and so the fees and costs for the initial retention of the Discovery Referee shall be split equally between the parties. (I.e., if there are five parties, each party to pay one-fifth of the initial retention fee. The Discovery Referee shall have the authority to make recommendations and proposed orders apportioning the fees, costs and sanctions relating to all discovery motions referred to the Discovery Referee.

The court sets a Case Management Conference in this matter for June 22, 2026 8:30 a.m., Department 32. All parties to file an updated Case Management Conference statement 15 days before the conference.

16. 9:01 AM CASE NUMBER: C23-02761
CASE NAME: SUNPOINT PUBLIC ADJUSTERS, INC. VS. GARY JOHNSON
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF DOCS**
FILED BY: JOHNSON, GARY
TENTATIVE RULING:

See Line 15.

Law & Motion
Add On

17. 9:00 AM CASE NUMBER: C23-03249
CASE NAME: AHARON POLIKER VS. INSULATION GURU, INC DBA HVAC GURU
***HEARING ON MOTION IN RE: BE RELIEVED AS COUNSEL RE: JAMES CAI**
FILED BY: INSULATION GURU, INC DBA HVAC GURU
TENTATIVE RULING:

On January 29, 2026, the court found good cause and granted the *ex parte* request of SAC Attorneys LLP to advance the hearing date of the Motion to be Relieved as Counsel from the hearing date of April 10, 2026 to the hearing date of February 6, 2026. Proof of service on Defendant Insulation Guru, Inc DBA HVAC Guru of the notice of the change in the hearing date, along with re-service of the moving papers has been filed with the court.

The unopposed Motion of SAC Attorneys LLP to be Relieved as Counsel is granted.

SAC Attorneys LLP is to submit a revised proposed order on Judicial Council Form MC-053 for the court's signature. The order will become effective upon proof of service of the order on Defendant Insulation Guru, Inc DBA HVAC Guru.

Law & Motion
Add on 2